A SUMMARY OF THE ENTIRE HILCHOT SHABBAT IN 14 CLASSES

# Medicine on Shabbat and Mastering Mukseh

Class 13 of 14

**Series:** Laws of Shabbat — a 14-part course

**Shiur:** 13 of 14

**Topic:** Medicine on Shabbat (the five levels of illness) and Mastering Muktseh (the seven categories)

**Recorded:** Tiferet Eyal, Hendon — 12 March 2019

**Schedule note:** Break the following week (Purim); final shiur 26 March.

## Recap

Chazal restricted medicine on Shabbat because remedies once required **grinding** herbs. **Pikuach nefesh** is different — a mitzvah overriding Shabbat, better done by a Jew than delegated to a non-Jew.

## Part A — The Five Levels of Illness

| Level | Description | What is permitted |
|---|---|---|
| 1. *Meichush be'alma* — mild discomfort | Slight headache, sore throat, chapped hands — you carry on as normal | No medicine at all (no paracetamol; no rubbing oil into chapped hands) |
| 2. *Choleh be'ever echad* — pain in one limb | Earache, heartburn, a headache you can still work through | A Jew may not medicate; you may ask a **non-Jew** to do something **rabbinic** (e.g. remove a mostly-detached painful nail; apply Vaseline) |
| 3. *Choleh kol gufo* — whole-body illness | Flu; or one-limb pain so severe you can't function (bad migraine, bedridden toothache or stomach ache) — you wouldn't go to work | **Medicine permitted**; a non-Jew may do **anything**, even Torah-level, asked outright; a Jew may do rabbinic acts (preferably with a shinui) — and, per Chacham Ovadia, even a **Torah-level** act with a **shinui** if no non-Jew is available |
| 4. *Sakanat ever* — risk to a limb | e.g. a severed finger | Today treated as pikuach nefesh — everything permitted |
| 5. *Pikuach nefesh* | Any danger to life | Everything permitted — an obligation |

Paradoxically, a slight ailment (Level 1) is treated **more strictly** than a worse one.

### Level 3 examples

- A non-Jewish helper may make you tea, or go to the chemist for medicine.
- Alone and bedridden with flu late on Friday night, needing a hot bath: try to find a non-Jew; failing that, turn the hot tap on **with an elbow or teeth** (a shinui). (Q: may you close it afterwards? — a good question; the "drive home" leniency is for pikuach nefesh, and may not extend here.)
- Lying with a migraine and the light on: ask a non-Jew; otherwise switch it off with an elbow. An **LED** is only rabbinic anyway; even a filament bulb may be switched off with a shinui in this situation.
- **Frail elderly people and young children** (up to about 6–7, when they no longer need their parents for small things) automatically have Level 3 status. Q (elderly with ongoing skin needs) — not a blanket rule; it depends on the actual need.

### Leniencies for Levels 1–2

- **Derech bri'im** — what healthy people normally do isn't "medicine": **prune juice** for constipation, **bananas** for diarrhoea, a shot of **whisky or vodka** for a mild toothache (but not gargling — that's medicinal).
- **A course of treatment begun before Shabbat** (antibiotics, a regular hand cream) may be continued — the decree targets someone who discovers a problem on Shabbat and anxiously improvises.

### Exercise and massage

Exercising or a massage **in order to sweat** (perspiration was a recognised therapy) is forbidden. Exercise or massage for **enjoyment or routine** (e.g. a strict fitness programme) — strictly permitted, though hardly in the spirit of Shabbat (and you'll want a shower afterwards — cold only).

### Creams and oils — *memare'ach*

Smoothing is forbidden (hides were smoothed in the Mishkan) only where a smooth **layer** remains — like wax smeared to seal a barrel.

- **Runny oil** — no smoothing issue at all.
- **Cream** — rub in a little at a time until fully absorbed, leaving no layer (rabbinic if a layer remains).
- **Thick ointment** (Vaseline) spread as a layer — forbidden.
- Separately, medicinal use must be permitted: **sunscreen** before sun exposure is prevention — fine (rubbed in); after-sun cream for a mild burn (Level 1–2) — not.

### Thermometers

Measuring is forbidden on Shabbat (linked to writing — one usually records measurements). For a Level 3 patient — permitted; Level 2 — ask a non-Jew. If there is any chance of danger, take the temperature.

## Part B — Muktseh

### What it means

**Muktseh** (from *katzeh*, "set aside") — something not designated for use on Shabbat. A **rabbinic** decree against **moving** it — not against touching it. A heavy object (a car) may be touched; a light one that would move when touched may not.

## Four reasons

1. **Ra'avad:** limits carrying, as a fence around the prohibition of carrying.
2. **Rambam (a):** a general fence — pens lead to writing, scissors to cutting, scales to measuring.
3. **Rambam (b):** to keep Shabbat from becoming mundane — just as we walk and speak differently on Shabbat (no business or politics), we handle different things.
4. **Rambam (c):** so that those who don't work during the week (people of leisure) also feel Shabbat is different.

## The seven categories

| Category | Examples | May it be moved? |
|---|---|---|
| 1. *Kli shemelachto le'issur* — a tool whose main use is forbidden | Hammer, pen, sieve, empty pot or frying pan, a fan | Yes — for a **permitted use** (*letzorech gufo*: hammer to crack a nut, empty pan to hold apples) or for its **place** (*letzorech mekomo*: a pen on your bed). Not to protect it. |
| 2. *Muktseh machmat chesron kis* — valuable forbidden-use items | A mohel's or shochet's knife; computer, washing machine; probably an expensive smartphone | No — not even for its place or use |
| 3. *Muktseh machmat gufo* — not a utensil, no use | Stones, sand, money; raw flour, raw potatoes, raw meat or fish | No (unless designated before Shabbat, e.g. sand set aside for children to play with) |
| 4. *Muktseh machmat issur* | Fruit that fell from a tree on Shabbat | No — lest one pick more |
| 5. *Muktseh machmat mitzvah* | A lulav on Shabbat of Sukkot (also hadassim) | No — but an etrog may be moved and smelled |
| 6. *Nolad* — came into being on Shabbat | An egg laid on Shabbat; milk a non-Jew milked on Shabbat | No |
| 7. *Basis* — a base for muktseh | A table holding muktseh at the start of Shabbat | No |

## Notes on the categories

- **The status is fixed when Shabbat begins.** A pot with food in it isn't muktseh and stays permitted after it's emptied; a pan empty at the start of Shabbat is muktseh all Shabbat.
- Once lifted permissibly, you may carry it on and put it away — you needn't drop it immediately.
- **Garden tools left out in the rain:** you may not bring them in to protect them. You may, however, *genuinely* decide to use the garden space (e.g. for a game), or use a hammer to crack a coconut, and move them in the process.
- **A fan** may be repositioned (as long as there's no risk of unplugging it), or turned away if the draught bothers you.

- **A phone left ringing as an alarm:** an old basic phone is a *kli shemelachto le'issur* — move it out of the room for quiet. An expensive smartphone is likely *chesron kis*. Value is judged objectively, not by sentimental attachment, and may change over time.
- **Paintings and picture frames:** Ashkenazim treat valuables never moved (e.g. paintings) as muktseh. For Sephardim, *chesron kis* applies only to items whose use is forbidden — so a painting, a framed picture or a vase may be moved (not electrical ones).

### Two ways to move any muktseh

1. **Tiltul min hatzad** — moving it indirectly via something else (lift the sheet and shake the camera off your bed) — only for the sake of a permitted thing, not to protect the muktseh item.
2. **Tiltul begufo** — with your body in an unusual way: kick it, blow it, push it with an elbow — permitted **even to protect it** (e.g. kick a banknote under the bed).

**Q: Someone left an iPhone on your place in shul?** — Move it with your elbows, or tilt the table it sits on (min hatzad, for your space). Asking a non-Jew — only where there's a mitzvah need (e.g. nowhere else to sit). Asking a non-Jew to do a Torah act with a shinui, or a non-Jew to ask another non-Jew — big questions for the final shiur.

## Summary

- **Five levels:** 1 — no medicine; 2 — a non-Jew for rabbinic acts; 3 — medicine permitted, a non-Jew for anything, a Jew with a shinui; 4–5 — everything.
- Derech bri'im foods and courses begun before Shabbat are permitted. Exercise only for enjoyment. Rub creams in fully; no thick layers. Thermometers only for Level 3 (or via a non-Jew at Level 2).
- **Muktseh** is about moving, not touching. Tools with forbidden uses may be moved for a permitted use or their place; valuables, stones, raw food, nolad and bases may not — except indirectly for permitted needs, or with your body.

## Coming Up

**Final shiur — 26 March:** Children and babies on Shabbat, including childbirth; and asking a non-Jew on Shabbat. Details of a new series after Pesach to follow — leave your details to stay updated.

*B'Ezrat Hashem*

---

Watch or listen to this shiur: youtu.be/-OU4IbTNzt8 · More shiurim: rabbikada.com